



Redundancy Rebates Act 1977

1977 CHAPTER 22

An Act to make provision for varying the amounts of rebates payable under section 30 of the Redundancy Payments Act 1965 and section 40 of the Contracts of Employment and Redundancy Payments Act (Northern Ireland) 1965. [22nd July 1977]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) For the purpose of varying the amounts of rebates payable under section 30 of the Redundancy Payments Act 1965 (rebates to employers in respect of redundancy payments and equivalent payments) the Secretary of State may from time to time by order made by statutory instrument modify Schedule 5 to that Act (calculation of rebates)—

- (a) by substituting for the three fractions of a week's pay for the time being specified in sub-paragraphs (a), (b) and (c) of paragraphs 2 and 9 one of the other sets of three fractions specified in the Schedule to this Act; and
- (b) by substituting for the fraction for the time being specified in paragraphs 3 and 12 for the purpose of calculating the amount of the rebates in respect of reduced payments the like fraction as, by virtue of paragraph (a) above, is substituted for the fraction in paragraphs 2(b) and 9(b).

(2) In the Schedule to this Act—

- (a) the three fractions specified in paragraph 4 are those which, at the passing of this Act, are specified in sub-paragraphs (a), (b) and (c) of paragraphs 2 and 9 of Schedule 5 to the Redundancy Payments Act 1965; and
- (b) the second of the fractions specified in paragraph 4 is the fraction which, at the passing of this Act, is specified in paragraphs 3 and 12 of the said Schedule 5.

1965 c. 62.

(3) An order under subsection (1) above may contain such transitional and consequential provisions as appear to the Secretary of State to be appropriate and may vary or revoke a previous order made under that subsection.

(4) No order shall be made under subsection (1) above unless a draft thereof has been laid before and approved by a resolution of each House of Parliament.

Power to vary
rebates in
Northern
Ireland.

1965 c. 19
(N.I.).

2.—(1) For the purpose of varying the amounts of rebates payable under section 40 of the Contracts of Employment and Redundancy Payments Act (Northern Ireland) 1965 (rebates to employers in respect of redundancy payments and equivalent payments) the Department of Manpower Services for Northern Ireland may from time to time by order modify Schedule 6 to that Act (calculation of rebates)—

- (a) by substituting for the three fractions of a week's pay for the time being specified in sub-paragraphs (a), (b) and (c) of paragraphs 2 and 9 one of the other sets of three fractions specified in the Schedule to this Act; and
- (b) by substituting for the fraction for the time being specified in paragraphs 3 and 12 for the purpose of calculating the amount of the rebates in respect of reduced payments the like fraction as, by virtue of paragraph (a) above, is substituted for the fraction in paragraphs 2(b) and 9(b).

(2) In the Schedule to this Act—

- (a) the three fractions specified in paragraph 4 are those which, at the passing of this Act, are specified in sub-paragraphs (a), (b) and (c) of paragraphs 2 and 9 of Schedule 6 to the Contracts of Employment and Redundancy Payments Act (Northern Ireland) 1965; and
- (b) the second of the fractions specified in paragraph 4 is the fraction which, at the passing of this Act, is specified in paragraphs 3 and 12 of the said Schedule 6.

(3) An order under subsection (1) above may contain such transitional and consequential provisions as appear to the

Department of Manpower Services for Northern Ireland to be appropriate and may vary or revoke a previous order made under that subsection.

(4) An order under subsection (1) above—

- (a) shall be a statutory rule for the purposes of the Statutory Rules Act (Northern Ireland) 1958; and 1958 c. 18 (N.I.).
- (b) shall be subject to affirmative resolution within the meaning of section 41(4) of the Interpretation Act (Northern Ireland) 1954. 1954 c. 33 (N.I.).

3.—(1) This Act may be cited as the Redundancy Rebates Act 1977. Short title, interpretation and extent.

(2) Any reference in this Act to any other enactment shall be construed as a reference to that enactment as amended, and as including a reference to it as extended or applied, by or under any other enactment, including this Act; and for this purpose “enactment” includes an enactment of the Parliament of Northern Ireland and a Measure of the Northern Ireland Assembly.

(3) Section 1 of this Act does not form part of the law of Northern Ireland and section 2 of this Act forms part of the law of Northern Ireland only.

Sections 1]and 2.

SCHEDULE

FRACTIONS FOR SUBSTITUTION INTO SCHEDULE 5 TO THE
REDUNDANCY PAYMENTS ACT 1965 AND SCHEDULE 6 TO
THE CONTRACTS OF EMPLOYMENT AND REDUNDANCY
PAYMENTS ACT (NORTHERN IRELAND) 1965

			<i>Fraction in paragraphs 2(a) and 9(a)</i>	<i>Fraction in paragraphs 2(b), 3, 9(b) and 12</i>	<i>Fraction in paragraphs 2(c) and 9(c)</i>
1.	...	...	21/40	7/20	7/40
2.	...	...	123/200	41/100	41/200
3.	...	...	27/40	9/20	9/40
4.	...	...	3/4	1/2	1/4
5.	...	...	33/40	11/20	11/40
6.	...	...	9/10	3/5	3/10
7.	...	...	39/40	13/20	13/40
8.	...	...	21/20	7/10	7/20
9.	...	...	9/8	3/4	3/8
10.	...	...	6/5	4/5	2/5